

SENATE BILL 1962

By Pody

AN ACT to amend Tennessee Code Annotated, Title 68,
Chapter 221, Part 7, relative to hardwater
standards.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 68, Chapter 221, Part 7, is amended by
adding the following new section:

68-221-722. Maximum hardwater level standards.

(a) As used in this section:

(1) "Hardwater" means water containing dissolved minerals, expressed
as calcium carbonate (CaCO_3) equivalents;

(2) "Seasonal runoff" means the temporary increase in water hardness
levels directly attributable to precipitation, snowmelt, or other seasonal
hydrological events occurring during a defined period;

(3) "State funds" means any grants, loans, appropriations, or other
financial assistance provided by this state, including, but not limited to, funds
from the state revolving fund, capital improvement grants, or infrastructure
financing programs; and

(4) "System upgrade" means any capital improvement, infrastructure
modification, treatment facility enhancement, or equipment replacement that
costs twenty-five thousand dollars (\$25,000) or more and is designed to improve,
expand, or modify the water treatment or distribution capacity of a public water
system.

(b) **Maximum hardwater standard.** The maximum allowable hardwater level for water distributed by public water systems in this state is one hundred eighty milligrams per liter (180 mg/L), measured as calcium carbonate (CaCO₃) equivalents.

(c) **Applicability and compliance requirements.**

(1) A public water system that receives state funds for a system upgrade on or after July 1, 2026, must comply with the maximum hardwater standard established in subsection (b) upon completion of the system upgrade.

(2) Public water systems that do not receive state funds for system upgrades on or after July 1, 2026, are grandfathered under this section and are not required to comply with the maximum hardwater standard established in subsection (b) unless and until they receive state funds for a system upgrade.

(3) For purposes of this subsection (c), the receipt of state funds for routine maintenance, repairs that cost less than twenty-five thousand dollars (\$25,000), administrative expenses, or operational costs do not trigger the compliance requirements of subdivision (c)(1).

(d) **Seasonal runoff exemption.**

(1) A public water system that demonstrates that hardwater levels exceeding one hundred eighty milligrams per liter (180 mg/L) are directly caused by seasonal runoff are temporarily exempt from the requirements of subsection (b) during the affected period.

(2) To qualify for the seasonal runoff exemption, a public water system shall:

(A) Notify the department within ten (10) business days of first exceeding the one hundred eighty milligrams per liter (180 mg/L) threshold due to seasonal runoff;

(B) Provide documentation demonstrating that the elevated hardwater levels are directly attributable to seasonal runoff and not to system deficiencies or treatment failures; and

(C) Submit a remediation plan, if required by the department, detailing measures to minimize the duration and extent of noncompliance.

(3) Following the conclusion of the seasonal runoff period, the affected public water system must return to compliance with the maximum hardwater standard established in subsection (b) within ninety (90) days.

(4) A public water system may utilize the seasonal runoff exemption for a cumulative period not to exceed one hundred twenty (120) days in a twelve-month period without prior approval from the department. Exemptions exceeding one hundred twenty (120) days in a twelve-month period require written approval from the commissioner.

(e) Monitoring and reporting.

(1) Public water systems subject to the requirements of this section must monitor hardwater levels in accordance with protocols established by the department.

(2) Results of hardwater monitoring must be included in the annual water quality reports required under applicable state and federal law.

(f) Enforcement. The department shall enforce this section in accordance with the enforcement provisions set forth in this chapter.

SECTION 2. The headings in this act are for reference purposes only and do not constitute a part of the law enacted by this act. However, the Tennessee Code Commission is requested to include the headings in any compilation or publication containing this act.

SECTION 3. This act takes effect July 1, 2026, the public welfare requiring it.